

Jugnu v. State of U.P. — recovery certificate relegated to Para 6.8 objection with stay

High Court of Judicature at Allahabad · Division Bench · 5 August 2022 · WRIT - C No. - 22263 of 2022 · **Writ disposed; Para 6.8 objection; eight-week stay of recovery.**

HEADNOTE

Without examining merits, the Allahabad High Court disposed of a writ seeking quashing of a 22 June 2018 recovery notice/certificate by granting liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks. If filed, the distribution licensee must decide it in accordance with law within the next four weeks after hearing. Coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The petitioners, Jugnu and another, challenged a recovery notice/certificate dated 22 June 2018 and sought a mandamus to decide their representation dated 23 May 2022. Counsel for the power distribution corporation stated on instructions that the petitioners may file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery demand; alternate remedy with stay

HOLDING

A writ against a recovery notice is disposed of without merits, with liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if so filed, the licensee shall decide it in accordance with law within the next four weeks after reasonable opportunity of hearing, and no coercive action shall be taken for eight weeks or until disposal, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 Writ against a recovery certificate disposed without merits; petitioner relegated to a Para 6.8 objection to be decided in accordance with law after hearing. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay If the Para 6.8 objection is filed within four weeks, it must be decided within the next four weeks after hearing; coercive recovery stayed for eight weeks or until disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY NOTICE/CERTIFICATE DATED 22.6.2018 AND THE UNDERLYING DEMAND

Court expressly declined to express any opinion on the merits. ¶ 1